D. Consumer Commission complaint — preparation draft

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PREPARATION DRAFT ONLY. Consumer Commissions have their own format, affidavit and document requirements, and complaints are filed through e-Jagriti (e-jagriti.gov.in). Use this to organise your facts; check the portal's requirements, and consider asking an advocate or a recognised consumer association to review it before filing.

BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, लखनऊ

Consumer Complaint No. _____ of 20___ (to be assigned)

IN THE MATTER OF:

सुनीता देवी, [ADD: full address], लखनऊ — Complainant

VERSUS

1. श्री साई ट्रेडर्स, [MISSING: seller's registered address (from the invoice / platform seller page)] — Opposite Party No. 1
2. BazaarLane, [MISSING: platform's registered office address] — Opposite Party No. 2

COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT, 2019

1. The Complainant is a consumer

The Complainant bought the goods for consideration through an online transaction and is a 'consumer' under Section 2(7) of the Consumer Protection Act, 2019. [MISSING: confirm the goods were bought for personal / household use]

2. Facts of the case

1. On 25 October 2026, I placed an order for ब्लूटूथ स्पीकर on BazaarLane, sold by श्री साई ट्रेडर्स (Order ID: BL20261029-7781) and paid ₹4,500.
2. The platform shows the order as delivered on 29 October 2026. However, I have not received the product. In my words: “मैंने ऑनलाइन ऑर्डर के लिए ₹4,500 का भुगतान किया था। ऐप पर ऑर्डर 'डिलीवर' दिखा रहा है, लेकिन मुझे सामान कभी नहीं मिला। मेरे घर पर किसी ने पार्सल नहीं लिया और मुझसे कोई OTP नहीं माँगा गया।”
3. I raised the matter with the seller/platform on 30 October 2026 (reference: BLC-55120). What I did: “30 अक्टूबर 2026 को मैंने कस्टमर केयर को कॉल किया, उन्होंने कहा 48 घंटे में जांच करेंगे, फिर कोई जवाब नहीं आया।”
4. As of 7 November 2026, the matter remains unresolved and I have not received the refund of ₹4,500 I asked for.

3. Grounds

1. Under Rule 6(3) of the Consumer Protection (E-Commerce) Rules, 2020, a seller on a marketplace shall not refuse to take back goods or refund the consideration where the goods are not delivered as per the stated delivery schedule. Where the platform itself is the seller, Rule 7(4) imposes the same duty.
2. I submit that the failure to deliver goods that were paid for, while the order is shown as delivered, amounts to a deficiency in service under Section 2(11) of the Consumer Protection Act, 2019, which is a ground of complaint under Section 2(6)(iii).

4. Cause of action

The cause of action arose on 25 October 2026 when the order was placed, and further on 29 October 2026 and on each date the Opposite Parties failed to resolve the complaint, and it is continuing.

5. Jurisdiction

Pecuniary: the value of goods paid as consideration is ₹4,500, which does not exceed ₹50 lakh; this Commission has jurisdiction under Rule 3 of the Consumer Protection (Jurisdiction of the District Commission, the State Commission and the National Commission) Rules, 2021.

Territorial: the Complainant resides / personally works for gain at लखनऊ, within the limits of this Commission (Section 34(2)(d) of the Act).

6. Limitation

The complaint is filed within two years of the cause of action, as required by Section 69 of the Consumer Protection Act, 2019.

7. Prayer

The Complainant respectfully prays that the Hon'ble Commission may direct the Opposite Parties, jointly and/or severally, to:

1. Refund the full amount of ₹4,500 paid.
2. Pay interest on the amount refunded and the costs of this complaint, as the Hon'ble Commission may deem fit.
3. Grant any other relief the Hon'ble Commission considers appropriate.

8. List of documents

- Annexure A-1: Payment proof (receipt, bank/UPI statement)
- Annexure A-2: Tracking / delivery-status screenshot
- Annexure A-3: Complaint / ticket reference number

9. Verification

I, सुनीता देवी, the Complainant, state that the facts above are true to my knowledge and belief. [ADD: place, date and signature; affidavit as required by the Commission]

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